

2. 9:00 AM CASE NUMBER: C23-02833
CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT**
FILED BY: HOOVER FLOORS
TENTATIVE RULING:

The unopposed motion of Defendant Hoover Floors, DBA Hoover Carpet Cleaning (Defendant), filed January 6, 2026, to set aside the default entered on October 30, 2025 is **DENIED**.

The defendant is a business entity and may only appear in court through an attorney. A corporation is not a natural person, and therefore it cannot appear in an action *in propria persona*. It can only appear through counsel. *Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal. 3d 724, 731. Here the moving papers appear to have been submitted by an individual on behalf of Defendant itself, rather than by an attorney purporting to represent the Defendant. There is an exception in the law to allow officers and directors of a corporation to appear in small claims cases. However this is an unlimited civil action and the Defendant may appear only through an attorney. The default remains in place.

3. 9:00 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
***HEARING ON MOTION IN RE: LEAVE TO FILE 1ST AMENDED COMPLAINT /PROOF OF NOTICE OF MOTION**
FILED BY: Plaintiff Aharon Poliker
TENTATIVE RULING

Plaintiff's unopposed motion for Leave to File a First Amended Complaint is **denied without prejudice**.

Plaintiff filed a motion for Leave to File a First Amended Complaint was filed in this matter on June 5, 2025. Hearing was set for October 3, 2025.

On October 3, 2025, hearing on this motion was continued from October 3, 2025 to January 23, 2026 for lack of notice to Defendants.

On November 14, 2025, Plaintiff/Cross-Defendant Aharon Poliker filed a document purporting to be a notice of motion. The pleading was styled, "Plaintiff / Cross-Defendant AHARON POLIKER'S NOTICE IN SUPPORT OF THEIR MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT." The face of the notice contained the date and time and department where the motion would be heard. However, the notice failed to state "the

grounds upon which the motion would be made and the papers, if any, upon which it is to be based," as required by CCP § 1010. Instead of a code compliant notice, the document erroneously attached a copy of the court's tentative ruling from a hearing held on January 6, 2025.

On January 23, 2026, this court ordered the Plaintiff to re-serve all parties with the notice of motion,

motion and all the papers upon which the motion is based. The Plaintiff's motion for Leave to File a First Amended Complaint was continued for a third time on the court's motion to March 27, 2026 at 9:00 a.m., Department 32.

As of March 26, 2026, Plaintiff has failed to file proof of service of all moving papers in support of the Motion for Leave to File a First Amended Complaint on the Defendants. The motion is denied on due process grounds, *i.e.*, failure to give the defendants notice and an opportunity to be heard, by failing to serve a code compliant notice of this motion on the Defendants.

PARTIES ARE TO TAKE NOTICE THAT NEXT CASE MANAGEMENT CONFERENCE IN THIS MATTER IS SET FOR APRIL 23, 2026, AT 8:30 A.M. IN DEPARTMENT 32. ALL PARTIES ARE TO FILE AND SERVE UPDATED CASE MANAGEMENT CONFERENCE STATEMENTS AT LEAST 10 CALENDAR DAYS IN ADVANCE OF APRIL 23, 2026.

4. 9:00 AM CASE NUMBER: C24-01208
CASE NAME: DOMONIQUE MEJIA VS. DA'TONJA RAMIREZ
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: MAINSTREAM ESCROW, INC.

TENTATIVE RULING:

On the Court's own motion, the hearing is continued to **9:00 a.m. on April 10, 2026.**

5. 9:00 AM CASE NUMBER: C24-01956
CASE NAME: JAMES MARITIME HOLDINGS, INC. VS. MATTHEW MATERAZO
***HEARING ON MOTION IN RE: LEAVE TO FILE AND AMENDED ANSWER AND FILE CROSS COMPLAINT**
FILED BY: MATERAZO, MATTHEW C.

TENTATIVE RULING:

Introduction

Before the Court is Defendant Matthew C. Materazo's ("Defendant")'s Motion for Leave of Court to Amend Answer and file two Cross Complaints. Defendant filed this motion on December 12, 2025. The Motion is opposed by Plaintiffs James Maritime Holdings, Inc. and Gladiator Solutions Inc.

Defendant Materazo seeks leave to file Exhibit A, an Amended Answer and seven crossclaims relating to Plaintiffs James Maritime Holdings, Inc. and Gladiator Solutions Inc. in the same document, as well as Exhibit B, a Cross-Complaint involving eleven new defendants containing eight causes of action.

The Court is unable to grant the motion at this time due to the procedural defects outlined below. As explained below, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court's ruling. The Motion is continued to July 31, 2026, at 9:00 a.m. in Department 32. Defendant's papers are due 14 court days before the hearing**